

26STCV19978 26STCV19978

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-09-23

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Case Number: 26STCV19978 Hearing Date: September 23, 2026 Dept: 732

Dallas James v. HRB Digital LLC, et al.

Thursday, September 24, 2026

CASE NUMBER: 26STCV19978

OPPOSED

Defendant HRB

Digital LLC's Motion for Reconsideration of July 28, 2026 Order Denying
Peremptory Challenge.

Facts: This is an action for invasion of
privacy. The Complaint alleges as follows. Plaintiff Dallas James ("Plaintiff")
used Defendant HRB Digital, LLC's website, and despite opting out of tracking
technologies, was subjected to spyware and tracking software on his browsing
activity. (Complaint ¶¶ 7–12.)

Procedural History: Plaintiff filed
the Complaint on June 18, 2026, alleging one cause of action for invasion of
privacy.

On

July 28, 2026, this court denied Defendant's 170.6 peremptory challenge as

untimely.

Defendant

filed the present reconsideration motion on August 14, 2026.

Analysis:

I. MOTION FOR RECONSIDERATION

Code Civ. Proc. § 1008 is the exclusive means for seeking reconsideration of an order or renewing a motion. (*Kerns v. CSE Ins. Group* (2003) 106 Cal.App.4th 368, 384.) The application to reconsider the matter and modify, amend, or revoke the prior order must be made within 10 days after service upon the party of written notice of entry of the order to the same judge or court that made the order. (Code Civ. Proc. § 1008(a).) A motion for reconsideration may only be brought if the party moving for reconsideration can offer “new or different facts, circumstances, or law” which it could not, with reasonable diligence, have discovered and produced at the time of the prior motion. (*Id.*) There is a strict requirement of diligence - i.e., the moving party must present a satisfactory explanation for failing to provide the evidence or different facts earlier. (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690.) “The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial.” (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212–13.)

Defendant HRB

Digital, LLC (“Defendant”) seeks reconsideration of this court’s order of July 28, 2026, denying Defendant’s peremptory challenge under Code of Civil procedure § 170.6. The court in its order denied the motion as untimely.

Defendant here

argues that the motion was only untimely under the first prong of Code of Civil Procedure § 170.6, timeliness provisions for civil cases. (Motion at p. 9.)

If directed to the trial of a civil cause

that has been assigned to a judge for all purposes, the motion shall be made to the assigned judge or to the presiding judge by a party within 15 days after

notice of the all purpose assignment, or if the party has not yet appeared in the action, then within 15 days after the appearance.

(Code Civ. Proc., § 170.6, subd. (a)(2).)

The court in its July 28, 2026 order denied Defendant's motion as untimely: "Defendant had 15 days from the notice of assignment and had received that notice on 6/30/26 when the complaint was served along with the notice of assignment." (7/28/2026 Order.) But Defendant had not appeared in this case at the time of the notice of case assignment. While the notice of case assignment was filed on June 18, 2026, Defendant did not appear in this action until it sought an extension of time to file a demurrer on July 24, 2026. Thus Defendant argues that its 170.6 motion was timely because, "[I]f the party has not yet appeared in the action, then within 15 days after the appearance." (Motion at p. 10.)

Defendant's argument is persuasive. It had not appeared in this matter at the time of the notice of case assignment, and its peremptory challenge was filed within 15 days of the appearance on July 24, 2026.

The motion is therefore GRANTED.

Superior Court of California

County of Los Angeles

Department 61

DALLAS JAMES;

Plaintiffs,

vs.

HRB DIGITAL, LLC, et al.;

Defendants.

Case No.:

26STCV19978

Hearing Date: September 24, 2026

[TENTATIVE] RULING RE:

Defendant HRB Digital LLC's Motion for Reconsideration of July 28,
2026 Order Denying Peremptory Challenge..

Defendant

HRB Digital LLC's Motion for Reconsideration of July 28, 2026 Order Denying
Peremptory Challenge is GRANTED.

Plaintiff to give
notice.

Dated: March 18, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court